

iLIVE CONNECT

Terms of Use

Welcome to the iLive Connect experience.

At iLive Connect (“**iLive**”), we are constantly pushing the boundaries of telemedicine to ensure round-the-clock, hassle free services for our patrons. We pride ourselves on being a completely transparent and user-centric platform. Given this, we would request you to review these terms of use (“**Terms**”) thoroughly and satisfy yourself on the conditions of use prior to accepting our services.

The Terms, detailed below, lays forth the provisions governing your access to, and use of the Services (defined hereinafter) provided by iLive. By proceeding to create an account with iLive, in order to avail the Services, you unconditionally acknowledge that you have read, understood and agreed to be bound by the Terms detailed herein. It is further clarified that, by clicking “I accept” or by installing or downloading the App on your mobile device, you agree to be bound by these Terms, as may be amended by us from time to time. If you do not agree to these Terms, please refrain from using the App or the Services.

THESE TERMS CONTAIN A BINDING ARBITRATION PROVISION. Please make sure you read these Terms along with our Privacy Policy (the “**Privacy Policy**”). Your use of the App and/or Services shall be deemed to constitute your consent to be legally bound by these Terms and the Privacy Policy, incorporated by reference herein.

1. DEFINITIONS:

1.1 “Affiliate” means all entities which are controlling, controlled by or under common control with a party. For the purposes of these Terms, "control" shall mean possessing, directly or indirectly, the power to direct or cause the direction of the management, policies or operations of an entity, whether through ownership of voting rights, by contract or otherwise.

- 1.2 “App”** shall mean the iLive Connect application in which these Terms can be accessed.
- 1.3 “Applicable Law”** shall mean any: (i) statute, statutory instrument, bye-law, order, directive, decree or law (including any common law, judgement, demand, order or decision of any court, regulator or tribunal); (ii) any legally binding rule, policy, guidance or recommendation issued by any governmental, statutory or regulatory body; and/or (iii) legally binding industry code of conduct or guideline, which relates to these Terms and the Services.
- 1.4 “Authorised Payment Method”** shall mean a current and valid payment method that is accepted by iLive for the Services, as may be updated by the User from time to time.
- 1.5 “Beta Services”** shall mean services or functionality that may be made available to the User by iLive to try at its option at no additional cost which is clearly designated as beta, pilot, limited release, developer preview, evaluation or any similar description.
- 1.6 “Disclosing Party”** shall mean the party sharing or transmitting Confidential Information related to that party to the other party.
- 1.7 “Effective Date”** shall mean the date on which the User accesses the Services.
- 1.8 “Fees”** shall mean the fees payable for the provision of Services by iLive to the User.
- 1.9 “iLive”** shall mean iLive Connect and include its affiliates.
- 1.10 “Intellectual Property Rights”** means any and all registered and unregistered rights granted, applied for, or otherwise now or hereafter in existence under or related to any patent, copyright, trademark, trade secret, database protection, or other intellectual property rights laws, and all similar or equivalent rights or forms of protection, in any part of the world.
- 1.11 “Know-How”** means formulae, methods, plans, inventions, discoveries, improvements, processes, performance methodologies, techniques, specifications, technical information, tests, results, reports, component lists, manuals and instructions.

1.12 “Receiving Party” shall mean the party receiving and/or using Confidential Information belonging to the other party and as such, required to protect such Confidential Information.

1.13 “Services” shall mean the products or offerings that are provided by iLive to the User.

1.14 “Service Fees” shall mean the fees to be paid by the User to access the Services that are provided by iLive to the User.

1.15 “Tele-Consultation Services” shall mean the telephonic and video-consulting support provided by iLive to its Users, accessible through the App.

1.16 “Terms” shall mean these Terms of Use and includes the Privacy Policy by reference.

1.17 “Termination Date” shall mean the date on which these Terms expire or terminate for any reason whatsoever.

1.18 “User” shall mean the natural persons who are duly authorized by iLive to access and use the Services for the purposes defined in these Terms.

1.19 “User Data” shall mean the electronic data provided or made available by the User to the Services and for the Services.

2. SCOPE OF TERMS

2.1 iLive offers its Services on the basis of the most current version of these Terms. Please note that before using our Services for the first time you must accept these Terms. The registration and use of our Services is prohibited without your consent to our Terms.

2.2 iLive explicitly reserves the right to make any future changes to these Terms. Such changes may be necessitated to comply with statutory requirements, correspond to technical and economic requirements, or meet the interests of our Users. These changes may be undertaken at any point in time and will be displayed to the User on their next use of the App.

3. ACCESS TO SERVICES

- 3.1 To access the Services, the User will need to create an account with iLive and pay the specified Service Fees, as detailed **in the payments page of the App**. The creation of the iLive account will enable the User to register for the Services. The iLive account created by the User shall be the interface between the User and the Services sought to be availed by the User.
- 3.2 During the creation of the iLive account, the User may be required to provide iLive with certain information, including personal information and health information. iLive may apply certain proprietary methodologies for analysis, processing and transmission of such information submitted by the User for provision of the Services. The collection, aggregation and analysis of such information enables iLive and approved third party medical providers to provide the Services to you. For details about how iLive collects and uses such User information, please see our Privacy Policy.
- 3.3 By registering, the User declares the binding offer to conclude a contract with iLive on the use of the Services on the basis of the most recent version of these Terms that the User explicitly accepts.
- 3.4 The activation of the account created by the User is confirmed directly after registration by a separate email, upon receipt of Service Fees from the User. iLive reserves the right to reject individual Users or their offer to conclude a contract without stating a reason. In such a case any payments already made will be reimbursed and User Data provided, will be deleted immediately.
- 3.5 On registration, the User confirms that they are of legal age under Indian law and as such, applicable law permits them to conclude contracts. Only individuals with legal capacity are permitted to register.
- 3.6 Minors are only permitted with the explicit agreement of a parent/guardian. A scanned copy of this written consent must be sent to **[insert email id]**. With the registration, the

parent/guardian declares they are entitled to submit legally binding declarations in the name of the minor.

- 3.7 Upon registration, the User confirms their acknowledgement and unconditional acceptance of these Terms and that their information is true, correct, up-to-date, and complete. It is clarified that the Users shall be liable and also obliged to regularly update their personal information. iLive reserves the right to contact Users at any time to verify registration data and usage information.
- 3.8 If the User provides false, incorrect, out-of-date, or incomplete information or iLive has reasonable apprehension for believing that the information is false, incorrect, out-of-date, or incomplete, then in such cases iLive shall be entitled to block such User from accessing the Services with immediate effect without prior notice.
- 3.9 The User must protect their registration data from unjustified access by third parties, abuse, or use with fraudulent intent. If there is even a suspicion that the User account has been exposed to such a risk, then this must be notified without delay to *[insert email id]*.

4. PAYMENTS AND FEES

- 4.1 The User's access to the Services provided by iLive is conditional on the receipt of the Service Fees from the User. The Service Fees detailed in the App are subject to periodic change. It is clarified that (i) Service Fees paid by the User are non-refundable; and (ii) Service Fees are based on Services purchased and not actual usage.
- 4.2 The subscription term for the Services shall commence on the date that iLive receives and acknowledges receipt of the Service Fees. Unless otherwise specified, the subscription term shall be for a period of 6 (six) months only. Please note that the specific duration of your subscription term will be provided in the order form generated upon receipt of Service Fee by iLive from the User.

- 4.3 The User acknowledges and agrees that the subscription to use the Services shall automatically renew at the end of the subscription term, unless cancelled by the User in advance, as detailed below.
- 4.4 In order to process the Service Fees, iLive may require the User's bank account details, credit card details and unified payment interface user ID, as may be applicable. The User must review iLive's Privacy Policy available [\[HERE\]](#) to understand how iLive will use the User Data provided by the User.
- 4.5 The User acknowledges that the Service Fees for the use of the Services shall be renewed at the end of each subscription term without any further notification being provided to, or any action required by, the User. The

5. USE OF SERVICES

- 5.1 The Services provided by iLive are subject to certain pre-requisites that must be functional for the effective use of the Services.
- 5.2 The Services provided through the App will require an active internet connection while using the App. The connection can be through Wi-Fi networks or provided by your mobile network provider, but iLive cannot take responsibility for the App not operating at full functionality if the User does not have access to Wi-Fi or mobile networks and/or does not have any data allowance left.
- 5.3 If the User is operating the App outside of an area with Wi-Fi, the User should remember that the terms of the agreement with the User's mobile network provider will still apply. As a result, the User may be charged by the mobile provider for the cost of data for the duration of the connection while accessing the App, or other third-party charges. In using the App, the User is accepting responsibility for any such charges, including roaming data charges if the App is utilised outside of the User's home territory (i.e. region or country) without turning off data roaming.
- 5.4 Further, iLive cannot always take responsibility for the way the User uses the App i.e. User shall need to make sure that the User's device stays charged – if it runs out of

battery and the User cannot turn it on to avail the Service, iLive cannot be held responsible. Further, the User acknowledges that iLive shall not be responsible for any error or malfunction on the User's device affecting the access or usability of the Services.

- 5.5** Users, who are patients, and who opt for online consultation services, may be required to undergo an initial medical examination to ascertain and record medical history, medication history and medical status before Tele-Consultation Services can be provided.
- 5.6** The User acknowledges that the Tele-Consultation services are provided at the express consent by the User and the same shall not be construed as a replacement for physical consultation and the Services are meant for general consultation only.
- 5.7** BY ACKNOWLEDGING AND ACCEPTING THESE TERMS, THE USER UNCONDITIONALLY PROVIDES CONSENT TO RECEIVE TELEPHONIC AND VIDEO-CONSULTATION SERVICES (I.E. TELE-CONSULTATION SERVICES) FROM ILIVE FOR THE DURATION THAT THE USER ACCESSES THE SERVICES. THE USER ACKNOWLEDGES THAT THE TELEPHONIC OR VIDEO CALLS MAY BE INITIATED EITHER BY THE USER OR ILIVE DIRECTLY. THE USER ACKNOWLEDGES THAT NO FURTHER CONSENT IS REQUIRED TO PROVIDE TELE-CONSULTATION SERVICES TO THE USER AND THAT THIS CLAUSE 5.7 SHALL ACT AS A CONTINUING CONSENT GRANTED BY THE USER.
- 5.8** After such online consultation, if it is recommended that the User should undergo any diagnostic tests or if the User is issued with a Prescription, the same are provided based on the information and preliminary examination, and therefore, such advice or prescription shall not be treated as accurate, final and conclusive. iLive reserves its rights to modify the prescription or recommended diagnostic tests if the User provides any additional information in future consultations.
- 5.9 Sharing User health data:** iLive permits the User to share the User's health information with specified nominee's of the User. The User should only share their

health information if the User is confident that the nominee needs to access this information and will manage the health information responsibly. Any health information shared by the User to the nominee cannot be recalled. The User acknowledges that iLive has no liability or responsibility for the misuse of the health information shared by the User to the nominees voluntarily added by the User on the App.

5.10 Beta Services: From time to time, iLive may make certain Beta Services available to the user at no charge. The User may choose to try such Beta Services or not in its sole discretion.

6. TERM AND TERMINATION

6.1 These Terms will remain in full force and effect for the duration of the Subscription Term, unless terminated by the parties in accordance with these Terms. As detailed in Clause 4.3 of these Terms, the subscription of the User shall renew for the same duration as the Subscription Term and billed to the card/payment details of the User shared with iLive. These Terms shall not be renewed if the User provides a letter with at least 30 (thirty) days' written notice period prior to completion of the Subscription Term, stating the User's intention to not renew the subscription or terminate the account.

6.2 iLive shall have the right to terminate these Terms for convenience by providing 30 (thirty) days' written notice to the User.

6.3 Each party shall have the right to terminate these Terms if the other party breaches a material obligation under these Terms and such breach remains uncured for a period of thirty (30) days from the date such breach is notified to the breaching party.

6.4 On termination of these Terms, iLive reserves the right to immediately terminate the subscription of the Services to the User. After a 30 (thirty) day period from the date of termination of these Terms, iLive shall have no obligation to maintain or provide any User data and shall thereafter, unless legally prohibited, delete all User data in its systems or otherwise in its possession or under its control. In cases where the User

terminates the subscription voluntarily, it will be the sole responsibility of the User to make a copy of such User data before terminating the subscription.

7. CONFIDENTIALITY

7.1 Definition of Confidential Information: “**Confidential Information**” shall mean all information disclosed by a party (“**Disclosing Party**”) to the other party (“**Receiving Party**”), whether orally or in writing, that is designated as confidential or that should reasonably be understood to be confidential given the nature of the information and the circumstances of disclosure. Confidential Information of User includes User Data; Confidential Information of iLive includes the Services and the terms and conditions of these Terms. However, Confidential Information does not include any information that (i) is or becomes generally known to the public without breach of any obligation owed to the Disclosing Party, (ii) was known to the Receiving Party prior to its disclosure by the Disclosing Party without breach of any obligation owed to the Disclosing Party, (iii) is received from a third party without knowledge of any breach of any obligation owed to the Disclosing Party, or (iv) was independently developed by the Receiving Party.

7.2 Protection of Confidential Information: As between the parties, each party retains all ownership rights in and to its Confidential Information. The Receiving Party will use the same degree of care that it uses to protect the confidentiality of its own confidential information of like kind (but not less than reasonable care) to (i) not use any Confidential Information of the Disclosing Party for any purpose outside the scope of these Terms and (ii) except as otherwise authorized by the Disclosing Party in writing, limit access to Confidential Information of the Disclosing Party to those of its and its Affiliates’ who need that access for purposes consistent with these Terms and who have signed confidentiality agreements with the Receiving Party containing protections not materially less protective of the Confidential Information than those herein.

7.3 Compelled Disclosure: The Receiving Party may disclose Confidential Information of the Disclosing Party to the extent compelled by law to do so, provided the Receiving Party gives the Disclosing Party prior notice of the compelled disclosure (to the extent legally permitted) and reasonable assistance, at the Disclosing Party's cost, if the Disclosing Party wishes to contest the disclosure. If the Receiving Party is compelled

by law to disclose the Disclosing Party's Confidential Information as part of a civil proceeding to which the Disclosing Party is a party, and the Disclosing Party is not contesting the disclosure, the Disclosing Party will reimburse the Receiving Party for its reasonable cost of compiling and providing secure access to that Confidential Information.

8. INDEMNITY

8.1 iLive Indemnity: iLive shall indemnify, hold harmless and, defend the User from and against any and all final court awarded damages that are attributable to claim by a third party indicating that the Services infringe such third party intellectual property rights; provided that: (a) the User gives iLive prompt notice in writing of any such suit and permits iLive, through counsel of its choice, to answer the charge of infringement and defend such claim or suit; (b) the User provides information, assistance and authority to enable iLive to defend such suit; and (c) iLive shall not be responsible for any settlement made by the User without iLive's prior written permission provided, however that such permission shall not be unreasonably withheld.

8.2 User Indemnity: The User will defend, indemnify, and hold harmless iLive, its corporate affiliates, or any of its or their respective directors, officers, owners, employees, agents, successors, and permitted assigns from and against any and all third-party claims, suits, proceedings, costs, and expenses (including, without limitation, attorneys' fees) arising from or related to the User's (a) breach of the confidentiality obligations, breach of intellectual property provisions and breach of representation and warranties provisions herein; (b) violation of any applicable law; and (c) willful misconduct and gross negligence.

9. OWNERSHIP RIGHTS

ILIVE RETAINS ALL RIGHT, TITLE, INTEREST IN AND TO THE ILIVE SERVICES, INCLUDING ALL RELATED INTELLECTUAL PROPERTY RIGHTS. NO RIGHTS ARE GRANTED TO THE USER OTHER THAN THE RIGHTS EXPRESSLY GRANTED IN THESE TERMS. NOTHING IN THE TERMS CONSTITUTES A WAIVER OF ILIVE'S INTELLECTUAL PROPERTY RIGHTS UNDER ANY STATUTE OR LAW.

10. DISCLAIMERS

THE ILIVE SERVICES ARE PROVIDED ON AN “AS IS” BASIS. WITHOUT LIMITING THE FOREGOING, ILIVE EXPLICITLY DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, REGARDING ANY DEVICE, SITE, APP AND SERVICES INCLUDING ANY WARRANTIES OF QUALITY, AVAILABILITY, MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE OR NON-INFRINGEMENT. ILIVE MAKES NO, AND DISCLAIMS ANY, WARRANTY THAT ANY DEVICE, SITE, APP OR SERVICES WILL MEET THE USERS REQUIREMENTS OR BE AVAILABLE ON AN UNINTERRUPTED, SECURE, OR ERROR-FREE BASIS. ILIVE MAKES NO, AND DISCLAIMS ANY, WARRANTY REGARDING THE QUALITY OF ANY DEVICE, SITE, APP OR SERVICES, OR TO THE ACCURACY, TIMELINESS, TRUTHFULNESS, COMPLETENESS OR RELIABILITY THEREOF. THE ABOVE SHALL ALSO APPLY TO ANY INFORMATION THE USER MAY RECEIVE FROM ILIVE OR THROUGH ILIVE AT ANY TIME. THE USER HEREBY RELEASES ILIVE FROM ANY DAMAGES, CLAIMS OR OTHER CAUSES OF ACTION RELATED IN ANY WAY, DIRECTLY OR INDIRECTLY, TO ANY DEVICE, SITE, APP OR SERVICES.

WITHOUT LIMITING THE FOREGOING, ILIVE FURTHER DISCLAIMS ANY WARRANTIES THAT ANY DEVICE, SITE, APP AND/OR SERVICES ARE FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS. THE USERS USE OF ANY DEVICE, SITE, APP AND SERVICES IS AT THE USERS OWN RISK, AND THE USER IS SOLELY RESPONSIBLE FOR ANY DAMAGE TO THE USERS COMPUTER OR MOBILE DEVICE AND/OR ANY DATA LOSS THAT MAY RESULT FROM THE USERS USE OF ANY DEVICE, SITE, APP OR SERVICES, INCLUDING WITHOUT LIMITATION, DAMAGE RESULTING FROM COMPUTER VIRUSES. NO COMMUNICATION, INFORMATION OR ADVICE GIVEN BY ILIVE OR ANY REPRESENTATIVE OF ILIVE SHALL CREATE ANY WARRANTY. THIS DISCLAIMER CONSTITUTES AN ESSENTIAL PART OF THESE TERMS.

NO CONTENT PUBLISHED ON ANY DEVICE, SITE OR APP, OR THROUGH THE SERVICES, CONSTITUTES A RECOMMENDATION, ENDORSEMENT OR OPINION ON BEHALF OF ILIVE. THE USER IS SOLELY AND EXCLUSIVELY RESPONSIBLE FOR ALL COMMUNICATIONS AND INTERACTIONS WITH ILIVE OR WITH ANY

PERSON OR ENTITY WITH WHOM ILIVE MAY COMMUNICATE, INTERACT OR ENGAGE AS A RESULT OF THE USERS USE OF ANY DEVICE, SITE, APP AND/OR SERVICES. THE USER AGREES AND CONFIRMS THAT ILIVE DOES NOT, AND DOES NOT INTEND TO, MAKE ANY INQUIRIES OF ANY USER, PERSON OR ENTITY OR VERIFY THE INFORMATION ANY USER, PERSON AND/OR ENTITY SUBMITTED OR PROVIDED WHILE USING ANY DEVICE, SITE, APP AND/OR SERVICES. THE USER AGREES TO TAKE PRECAUTIONS IN ALL COMMUNICATIONS AND INTERACTIONS WITH ANY PERSON OR ENTITY WHETHER MADE ON-LINE OR OFF-LINE.

BY USING THE SERVICES, THE USER REPRESENTS AND WARRANTS THAT THE USER HAS HAD THE OPPORTUNITY TO CONSIDER THE RISKS AND BENEFITS OF THE USE OF THE SERVICES, AND THAT THE USER HAS PROVIDED VOLUNTARY INFORMED CONSENT TO USE THE SERVICES AND PROVISION OF THE SERVICES TO THE USER.

11. LIMITATION OF LIABILITY

IN NO EVENT SHALL ILIVE BE LIABLE TO THE USER FOR ANY LOST OR CORRUPTED DATA, DOWNTIME, INTERRUPTION OR OTHER SPECIAL, INCIDENTAL, CONSEQUENTIAL, PUNITIVE OR INDIRECT DAMAGES, HOWEVER CAUSED AND REGARDLESS OF THEORY OF LIABILITY, INCLUDING WITHOUT LIMITATION, NEGLIGENCE AND (B) IN NO EVENT SHALL THE TOTAL AGGREGATE LIABILITY OF ILIVE, FOR ALL CLAIMS ARISING OUT OF OR UNDER THESE TERMS, EXCEED AN AMOUNT OF INDIAN RUPEES TWO THOUSAND (INR 2000/-).

12. REPRESENTATIONS AND WARRANTIES:

12.1 User Representations and Warranties: The User represents and warrants that the (a) User is 18 years of age or older and has the right, authority and capacity under applicable law to use the Services and enter into these binding Terms; (b) User will not transfer (including by way of sublicense, lease, assignment or other transfer, including by operation of law) their login and account details or right to use the Services to any

third party; (c) information given to iLive or uploaded to the iLive App by the User will always be true, accurate, correct, complete and up to date, to the best of the User's knowledge and that the User is the owner of the data disclosed; (d) User will not use the Services for any unauthorized and unlawful purpose; (e) User will not engage in any activity that interferes with or disrupts the Services or the servers and networks which are connected to the provision of Services; (f) comply with all laws, regulations, and ordinances applicable to the User and relating to the use of the Services under these binding Terms.

12.2 iLive Representations and Warranties: The Services provided by iLive is provided on an "as is", "as available" basis and iLive makes no express or implied representations or warranties about its subscription services or of merchantability or fitness for a particular purpose or use or non-infringement. iLive does not authorize anyone to make a warranty on its behalf and you may not rely on any statement of warranty as a warranty by iLive.

13. FEEDBACK AND SUGGESTIONS

Subject to any applicable terms and conditions set forth the Privacy Policy, any communication or other material that the User sends to iLive, such as any questions, comments, feedback, suggestions, or the like, is and will be deemed to be non-confidential and iLive shall have no obligation of any kind with respect to such information. iLive shall be free to use any ideas, concepts, know-how or techniques contained in such communication for any purpose whatsoever, including but not limited to, operating, developing, and improving the Services. As further described herein, the User is solely responsible for all information the User sends to iLive, including, without limitation, its accuracy, truthfulness and non-infringement of any other party's legal rights.

14. NOTICES

All notices and other communications pertaining to these Terms shall be sent by e-mail, wherein, in the event of iLive to [insert email id], and in the event of the User, to the email id used for the creation of the account to access the Services.

15. GOVERNING LAW AND JURISDICTION

Subject to the provision on arbitration below, these Terms and any contractual obligation between iLive and the User will be governed by the laws of the Republic of India. Any dispute, claim or controversy arising out of or relating to these Terms, including the determination of the scope or applicability of these Terms to arbitrate, or the Users use of the Services shall be determined by arbitration to be held in **New Delhi, India**, before a sole arbitrator mutually appointed by iLive and the User. The seat of such arbitration shall be New Delhi, India. Subject to the above mentioned clause, the courts situated in New Delhi, India shall have exclusive jurisdiction over any disputes arising out of or in relation to these Terms.

16. ENTIRE AGREEMENT

These Terms constitute the entire agreement and understanding between the User and iLive in relation to the use of the Services and the App.

17. ASSIGNMENT

Neither Party is permitted to assign any obligations created through these binding Terms to any third party.

18. SEVERABILITY

If any provision of these Terms are held by a court of competent jurisdiction to be contrary to law, the provision will be deemed null and void and the remaining provisions of these Terms will remain in effect.

19. RELATIONSHIP OF THE PARTIES

These Terms do not create a partnership, franchise, joint venture, agency, fiduciary or employment relationship between the parties.

20. SURVIVAL

The provisions of Clauses 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21 and 22 shall survive expiration or termination of these Terms for any reason.

21. THIRD-PARTY BENEFICIARIES

There are no third-party beneficiaries under these Terms.

22. FORCE MAJEURE

Neither iLive nor the User shall be liable for any failure or delay in performance under these Terms for causes beyond the party's reasonable control and not caused by that party's fault, or negligence, including, but not limited to, "acts of God", acts of government, flood, fire, civil unrest, acts of terror, pandemics and epidemics, strikes or other labor problems, computer attacks or malicious acts, such as attacks on or through the internet, any internet service provider, telecommunications or hosting facility.

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